

C.C.R.B CASE CLOSING FORM

Investigator assigned: Elizabeth A. Fasano		Team: 3	CCRB#: 9900138	☒ Force ☒ Discourtesy ☒ Abuse ☐ O.L. ☐ Injury
Date of incident: 1/10/99	Time of incident: 3:40 PM	Location of incident: West 140th Street and Broadway, Manhattan	Pct. of occurrence: 30th	Date S.O.L. Expires: 7/10/00
Date reported: 1/12/99	Time reported: 8:37 PM	To whom/where/how reported: Complaint was called in to the CCRB Complaint Response Unit by Police Personnel		
Complainant: § 87(2)(b)		Home address: § 87(2)(b)		
Victim(s): § 87(2)(b) § 87(2)(b) § 87(2)(b)		Home address: § 87(2)(b) § 87(2)(b) § 87(2)(b)		
Witness(es):		Home address:		
Subject officer(s) (include rank): PO Mercedes Brown PO Ronald Luparello PO Michael Kane Sgt. Justin McCormack Members of Service Unidentified		Shield: 05108 27134 29553 02267	Tax: 907693 916088 915978 898009	Command: 030 (731) 030 030 030
Witness officer(s) (include rank): Sgt. Enrique Calderin PO Joseph Ayala PO Ronald Baird PO Roger Coleman PO Wilder Sanchez		Shield: 1650 26749 29154 12292 28753	Tax: 882325 915266 916965 915466 894339	Command: 030 030 030 030 030

Allegation(s) by letter:	Recommendation(s):
A. Abuse of Authority- PO Luparello abused his authority when he stopped and questioned Ms. § 87(2)(b) in violation of Patrol Guide procedure 116-33.	Exonerated
B. Abuse of Authority- PO Luparello abused his authority when he stopped and searched Ms. § 87(2)(b) in violation of Patrol Guide procedure 116-33.	Unfounded
C. Abuse of Authority- PO Kane abused his authority when he searched Ms. § 87(2)(b) purse, in violation of Patrol Guide procedure 116-33.	Exonerated
D. Abuse of Authority- PO Luparello abused his authority when he searched through Ms. § 87(2)(b) purse, in violation of Patrol Guide procedure 116-33.	Exonerated
E. Abuse of Authority- PO Brown abused her authority when she searched Ms. § 87(2)(b) in violation of Patrol Guide procedure 116-33.	Exonerated
F. Abuse of Authority- Sgt. McCormack abused his authority when he instructed PO Brown to frisk Ms. § 87(2)(b) in violation of Patrol Guide procedure 116-33.	Unsubstantiated
G. Discourtesy- PO Brown was discourteous towards Ms. § 87(2)(b) when she said, "Shut the fuck up," and "None of your fucking business" when Ms. § 87(2)(b) asked why she was stopped and why she was being searched, in violation of Patrol Guide procedure 104-01, page 3.	Unfounded
H. Discourtesy- PO Brown was discourteous when she told Ms. § 87(2)(b) her jeans were too tight and then asked her if she had a yeast infection, in violation of Patrol Guide procedure 104-01, page 3.	Unfounded
I. Force- PO Brown employed unnecessary force when she grabbed Ms. § 87(2)(b) by the wrist and jerked her around, in violation of Patrol Guide procedure 104-01, page 11.	Unsubstantiated
J. Offensive Language- An unidentified MOS used offensive language when he referred to Ms. § 87(2)(b) as "hot" and "sexy," in violation of Patrol Guide procedure 104-01, page 3.	MOS Unidentified
K. Offensive Language- An unidentified MOS used offensive language when he referred to Ms. § 87(2)(b) as "hot" and "sexy," in violation of Patrol Guide procedure 104-01, page 3.	MOS Unidentified
L. Force- PO Brown employed excessive force when she hit Mr. § 87(2)(b) on the side of his head when she was arresting him across the street from where Ms. § 87(2)(b) was arrested, in violation of Patrol Guide procedure 104-01, page 11.	Unsubstantiated

Synopsis

Ms. § 87(2)(b) fit the description of a female seen purchasing drugs. A police officer stopped and questioned her. The same officer and his partner allegedly searched through her purse. A female officer then arrived on the scene and searched her. It is recommended that these allegations be exonerated. Ms. § 87(2)(b) alleges that this same female officer searched her, too. It is recommended that this allegation be unsubstantiated. Ms. § 87(2)(b) also alleges that the same male officer, who stopped her and Ms. § 87(2)(b) searched her and Ms. § 87(2)(b) alleges that the female officer was discourteous and used offensive language towards her. § 87(2)(g) Ms. § 87(2)(b) alleged that the female officer used force against her and Ms. § 87(2)(b) alleged that she used force against a male she arrested across the street. It is recommended that these allegations of be unsubstantiated. Ms. § 87(2)(b) alleged that two male police officers referred to her as "hot" and "sexy." These officers remain unidentified.

Summary of Complaint

On January 10, 1999, at approximately 3:40 PM, Ms. § 87(2)(b) and her friend, Ms. § 87(2)(b) were walking down Broadway. At West 140th Street and Broadway, PO Luparello walked up to them and asked if he

could speak to them for a few minutes. They agreed and walked over to his RMP with him. He asked Ms. § 87(2)(b) what she was doing on that block and if she had been in a deli at all that day. Ms. § 87(2)(b) explained that she did not know anything what he was talking about. PO Luparello's partner, PO Kane, took Ms. § 87(2)(b) purse and he and PO Luparello looked through it. Ms. § 87(2)(b) said that she helped them look through it, because she had nothing to hide. Ms. § 87(2)(b) was sitting on the hood of a car parked next to the RMP and crying. PO Mercedes Brown arrived on the scene. PO Brown pushed Ms. § 87(2)(b) against the RMP and asked her if she had any sharp objects in her pockets that might stick her. Ms. § 87(2)(b) said, "No," and then PO Brown started searching her. During the search, PO Brown accused Ms. § 87(2)(b) of making some sort of transaction. Ms. § 87(2)(b) is still not sure what type of transaction PO Brown was referring to. Ms. § 87(2)(b) asked PO Brown what was going on. PO Brown said, "None of your fucking business." Then she made Ms. § 87(2)(b) take off her boots and she shook them out. PO Brown then commented on how tight Ms. § 87(2)(b) jeans were and asked her if she had a yeast infection. PO Brown then made Ms. § 87(2)(b) undo two or three buttons on her shirt, so she could check her bra. Ms. § 87(2)(b) was very embarrassed, because she was still standing outside in front of everyone. PO Brown continually shoved Ms. § 87(2)(b) around. She grabbed Ms. § 87(2)(b) by the wrist and jerked her around forcefully. Ms. § 87(2)(b) kept asking PO Brown what this was all about, but she just said, "Shut the fuck up." Ms. § 87(2)(b) was placed in the RMP until the prisoner van arrived. Then she was placed inside the van. Two male officers, who were in the van, asked her for her name and address. Ms. § 87(2)(b) said that she was not going to cooperate with them until they cooperated with her. They were very nice to her and PO Brown left by this time, so Ms. § 87(2)(b) stated her name and pedigree information. Over the radio, Ms. § 87(2)(b) could hear male officers calling her "sexy" and "hot." Then a police car pulled up next to the van and the two male officers inside said about Ms. § 87(2)(b) "It's funny that someone so hot could be selling drugs." Ms. § 87(2)(b) did not see the officers that were saying this, since she was in the back of the van. She was then taken to 138th Street and Amsterdam Avenue, where she remained for approximately two hours, while others were arrested. Sgt. Calderin arrived on the scene to identify Ms. § 87(2)(b). He determined that she was not the subject they were looking for. He apologized and explained what had happened and why she had been stopped.

Ms. § 87(2)(b) said that on the day of the incident she was wearing flared, light, faded, blue jeans, black, "Guess," leather boots, a black, "Guess," fitted, leather jacket, a blue, red and white, plaid, button down shirt and a brown purse. She thinks she was wearing her hair down.

According to Ms. § 87(2)(b) PO Luparello and PO Brown searched her also. She also alleged that after Ms. § 87(2)(b) was arrested, PO Brown arrested a male across the street and slapped him on the side of the head.

Results of Investigation

Ms. § 87(2)(b) saw PO Brown's name and shield number when she was searching her, so she was able to identify her. Ms. § 87(2)(b) was also able to identify Sgt. Calderin, because he identified himself when he explained what had happened. During his interview, Sgt. Calderin stated that PO Ayala was in the observation post with him and that PO Luparello, PO Kane, PO Baird and PO Coleman made up the arrest team. Sgt. Calderin noted that PO Vega is usually part of his team, but he wasn't sure if he was on this particular day. PO Vega was brought in to be interviewed, but he stated, and his memo book confirmed, that on January 10, 1999, he took an "E-day," which stands for Emergency Day, which is the same as a personal day. § 87(2)(g)

According to Ms. § 87(2)(b) on January 10, 1999, at approximately 3:40 PM, when she and Ms. § 87(2)(b) got to the corner of West 140th Street and Broadway, PO Luparello came up from behind and tapped her arm to get their attention. Ms. § 87(2)(b) and Ms. § 87(2)(b) turned around and he asked if he could ask them a few questions. Once they walked over to his RMP, PO Luparello turned Ms. § 87(2)(b) around and patted her down. Then he searched inside Ms. § 87(2)(b) pockets. PO Luparello told Ms. § 87(2)(b) to unzip her jacket. At this time, PO Luparello's partner, PO Kane, was searching through Ms. § 87(2)(b) purse. Two more police cars pulled up. PO

Brown got out of one of the cars and walked over to Ms. § 87(2)(b). PO Luparello searched under Ms. § 87(2)(b) pants legs and in her socks. PO Brown asked Ms. § 87(2)(b) if she had any needles or sharp objects in her pockets that would stick her. Ms. § 87(2)(b) assured her that she did not. PO Brown searched Ms. § 87(2)(b) back pants pockets and her jacket pockets. Then PO Brown brought Ms. § 87(2)(b) over to another car to be searched. Ms. § 87(2)(b) heard PO Brown yelling at Ms. § 87(2)(b) but she does not know what she was saying, because she was answering PO Luparello's questions. Ms. § 87(2)(b) was then placed in handcuffs. PO Luparello and PO Brown searched through Ms. § 87(2)(b) wallet and took out her identification. After PO Kane ran Ms. § 87(2)(b) identification through the computer in his car, PO Luparello gave it back to her and said, "Get out of here." A van arrived and Ms. § 87(2)(b) was placed inside it.

Ms. § 87(2)(b) described Ms. § 87(2)(b) as a tall, light skinned, Puerto Rican female with long, light brown hair. On the day of the incident, Ms. § 87(2)(b) said Ms. § 87(2)(b) was wearing tight blue jeans that were slightly flared at the bottom, a ¾ length, black, leather jacket and she was carrying a black leather purse.

Ms. § 87(2)(b) saw PO Brown arrest a male, identified as § 87(2)(b) across the street from where Ms. § 87(2)(b) was arrested. Ms. § 87(2)(b) alleges that PO Brown slapped Mr. § 87(2)(b) on the side of his head before placing him inside the same prisoner van that Ms. § 87(2)(b) was placed inside of.

When Ms. § 87(2)(b) was asked if she heard PO Brown mention Ms. § 87(2)(b) jeans being too tight or anything about a yeast infection, Ms. § 87(2)(b) noted that Ms. § 87(2)(b) told her that PO Brown was very rude in the van and she thinks that is when PO Brown made those remarks, but she was not there to hear them. When asked if she heard PO Brown curse at Ms. § 87(2)(b) she said that she heard PO Brown yelling at Ms. § 87(2)(b) but she couldn't hear what she said.

According to Sgt. Calderin and PO Ayala, they were conducting a Street Narcotics Enforcement Unit Operation. They were in an observation post, which was located in a building, which looked over West 137th Street and Broadway. They observed a female purchasing drugs. Sgt. Calderin described her as a white or Hispanic female with long black hair, wearing blue jeans and a black leather jacket, taking part in a drug transaction. PO Ayala described her as a female with light skin, who was wearing a black jacket, light blue jeans, carrying a large black or dark brown handbag and heading northbound up Broadway. Sgt. Calderin then radioed a description of the female directly to the arrest team. Sgt. Calderin and PO Ayala then remained at the observation post to watch for more "buyers," so they did not witness or hear anything that took place during Ms. § 87(2)(b) arrest. Nor did Sgt. Calderin or PO Ayala ever hear any of the officers refer to Ms. § 87(2)(b) as "hot" or "sexy" over the radio or in person. More specifically, they never heard any of the officers say, "It's funny that someone so sexy could be selling drugs." Sgt. Calderin and PO Ayala stated that they did not make any such comments either.

According to PO Baird and PO Coleman, Sgt. Calderin gave a description over the radio of a female he had just observed purchasing narcotics. PO Coleman could not recall the exact description, but PO Baird remembered that it was of a female, wearing a dark jacket and blue jeans, heading northbound on Broadway with a friend. PO Luparello and PO Kane were closer to where Ms. § 87(2)(b) was observed, so they stopped her and her friend. PO Luparello radioed PO Baird and PO Coleman and told them that he and PO Kane apprehended that suspect and that they should come pick her up at West 140th Street and Broadway. Both PO Baird and PO Coleman stated that by the time they arrived at the location, Ms. § 87(2)(b) was already handcuffed. According to PO Baird, PO Luparello, PO Kane and PO Brown were standing with Ms. § 87(2)(b). PO Coleman only remembered that PO Luparello was standing with Ms. § 87(2)(b) and he believes he was holding onto her elbow. As soon as they arrived, Ms. § 87(2)(b) was ready to be placed in the prisoner van. PO Baird and PO Coleman did not see Ms. § 87(2)(b) or her friend get frisked or searched by PO Brown or any other officer. Ms. § 87(2)(b) was placed in the back of the van. PO Baird and PO Coleman then went back to Amsterdam Avenue, between West 135th Street and West 136th Street, where they were originally parked, to continue the operation. PO Coleman stated, and his memo book indicates, that Ms. § 87(2)(b) was

the first person arrested during the SNEU operation and that she was the only one placed in the prisoner van at that location. Between 4:30 PM and 5:00 PM, Sgt. Calderin called off the operation. PO Baird and PO Coleman then took the prisoners to West 137th Street and Broadway, where Sgt. Calderin and PO Ayala determined that Ms. § 87(2)(b) was not the subject. The handcuffs were immediately removed from Ms. § 87(2)(b) wrists and she was offered a ride to anywhere she had to go.

Neither PO Baird nor PO Coleman heard any conversation between PO Brown and Ms. § 87(2)(b). Therefore, they don't know if PO Brown ever cursed at Ms. § 87(2)(b) or asked her if she had a yeast infection. Neither officer witnessed any physical contact between Ms. § 87(2)(b) and PO Brown. They did not see PO Brown frisk or search Ms. § 87(2)(b) nor did they see PO Brown grab Ms. § 87(2)(b) by the wrist and jerk her around at any time. Neither PO Baird nor PO Coleman saw, or knew anything about, PO Brown being involved in a male's arrest across the street from where Ms. § 87(2)(b) was arrested. Neither PO Baird nor PO Coleman saw PO Brown slap anybody in the head.

PO Baird and PO Coleman had no idea if PO Luparello or PO Kane frisked Ms. § 87(2)(b) or Ms. § 87(2)(b).

PO Baird and PO Coleman strongly denied ever hearing any officer make any comments, either to them or over the radio, about Ms. § 87(2)(b) being "hot" or "sexy." PO Baird and PO Coleman said that neither of them made these remarks, either. More specifically, PO Baird and PO Coleman denied hearing any officers say, or saying themselves, "It's funny that someone so hot would be selling drugs." PO Coleman further noted that a statement like that wouldn't have even made sense, since Ms. § 87(2)(b) was suspected of buying drugs and not selling them.

Neither PO Baird nor PO Coleman saw PO Luparello, PO Kane or PO Brown search through Ms. § 87(2)(b) purse. However, PO Coleman admitted that he had to go through Ms. § 87(2)(b) purse inside the van in order to get her identification. He explained that Ms. § 87(2)(b) was very annoyed about being arrested and she was refusing to cooperate and identify herself. PO Coleman said that Ms. § 87(2)(b) kept saying, "I don't have to tell you my name." PO Coleman explained to Ms. § 87(2)(b) that he had to fill out some paperwork and he needed her pedigree information. She refused to give him her name or any of the pedigree information, so he went through her purse to find her wallet in order to check her identification.

According to Sgt. Justin McCormack, after leaving a job, he, PO Brown and PO Sanchez happened to be driving behind PO Luparello and PO Kane, when they stopped and apprehend two females. Sgt. McCormack, PO Brown and PO Sanchez pulled over and stopped to see if PO Luparello and PO Kane needed any assistance. Both PO Luparello and PO Kane explained to Sgt. McCormack that they were conducting a SNEU operation. They further explained that Sgt. Calderin, who was in an observation post, observed a female purchasing drugs and he gave a description of her over the radio, which one of the females matched. PO Brown asked the officers if they needed her help and they said that they did. Sgt. McCormack and PO Brown exited the RMP. Sgt. McCormack stated that he was standing directly behind PO Brown throughout the entire incident. He stated that PO Brown gave the one female, Ms. § 87(2)(b) who fit the description of the subject, a quick pat down over her clothing. Sgt. McCormack stated PO Brown was unable to check inside Ms. § 87(2)(b) pants pockets, or lift up her pants legs, because her pants were too tight. He also denied that PO Brown had Ms. § 87(2)(b) unbutton her shirt or checked her bra. Sgt. McCormack stated that PO Brown bent down to check Ms. § 87(2)(b) pants legs or socks, but because Ms. § 87(2)(b) pants were too tight, she couldn't. However, Ms. § 87(2)(b) who was very agitated, said something along the lines of, "I don't have anything in my shoes, either," and she kicked her shoes off without being asked to. Shortly after PO Brown finished frisking Ms. § 87(2)(b) a prisoner van arrived on the scene. Ms. § 87(2)(b) was placed inside. Sgt. McCormack and PO Brown then went back to their RMP.

Sgt. McCormack never saw PO Luparello or PO Kane frisk or search Ms. § 87(2)(b) or her friend. He does not recall them searching Ms. § 87(2)(b) purse either. He stated that PO Brown could have looked through Ms. § 87(2)(b) purse, but he cannot recall for certain.

Sgt. McCormack said that PO Brown never cursed at or used any profanity towards Ms. § 87(2)(b) nor did she ask Ms. § 87(2)(b) if she had a yeast infection or mention a yeast infection in regards to Ms. § 87(2)(b) jeans being too tight or in any other context. The only time Sgt. McCormack heard PO Brown mention that Ms. § 87(2)(b) jeans were too tight was when she turned to PO Luparello and PO Kane and explained that she couldn't check inside Ms. § 87(2)(b) pockets for contraband, because her jeans were too tight. However, Sgt. McCormack explained that PO Brown was just stating fact and not being offensive.

Sgt. McCormack stated that PO Brown never grabbed hold of Ms. § 87(2)(b) wrist and jerked her around or employed any force against her.

Sgt. McCormack never heard any male officers refer to Ms. § 87(2)(b) as "hot" or "sexy" in person or over the radio. More specifically, Sgt. McCormack did not hear any officers say, "It's funny that someone so hot could be selling drugs." Sgt. McCormack stated that he never made any such remarks, either.

Sgt. McCormack stated that once PO Luparello and PO Kane no longer needed PO Brown's assistance, he and she went back to the RMP, which was across the street. PO Brown went around to the side of the car, which was next to the sidewalk. A male, who was behaving in an unruly manner, approached PO Brown and either shoved her or tried to hit her. PO Brown, who is only 4'10" and 110 lbs., held onto this male. Sgt. McCormack ran around to the other side of the car and placed this male, identified by the command log as § 87(2)(b) under arrest. He thinks PO Sanchez might have exited the vehicle to assist also. Sgt. McCormack does not know why this male approached PO Brown in the first place. Mr. § 87(2)(b) was placed inside their RMP and taken to the precinct where he was issued a summons § 87(2)(b). Sgt. McCormack strongly denied the allegation that PO Brown slapped this male on the head or hit him in any other way.

PO Sanchez thinks that he, Sgt. McCormack and PO Brown might have been called to West 140th Street and Broadway, because two officers involved in a SNEU operation stopped two females and they needed a female officer to frisk them. PO Sanchez remained in the car, which was double parked in the middle of the street, and PO Brown and Sgt. McCormack exited. From the car, PO Sanchez saw PO Brown frisk only one of the females, which was Ms. § 87(2)(b). PO Sanchez does not know if any officers ever frisked the other female. PO Sanchez did not see PO Brown, or any other officer, search inside the Ms. § 87(2)(b) clothing. PO Sanchez does not know if the female took her boots off or if she was ever told to take her boots off. PO Sanchez never saw Ms. § 87(2)(b) unbutton her shirt and he does not know if PO Brown told her to unbutton her shirt. PO Sanchez emphasized that he was unable to hear any conversation, because he remained inside the RMP the entire time. He, therefore, does not know if PO Brown ever cursed at Ms. § 87(2)(b) or mentioned her having a yeast infection, but if she did, he did not hear it. Once PO Brown finished frisking Ms. § 87(2)(b) PO Luparello handcuffed Ms. § 87(2)(b) and PO Brown started walking across the street to a male who was yelling and screaming. PO Brown arrested this male § 87(2)(b) and placed him inside their RMP. PO Sanchez never saw PO Brown hit this male at any time.

PO Sanchez did not see PO Brown grab hold of Ms. § 87(2)(b) wrist and jerk her around at all. He did not see PO Brown use any force against Ms. § 87(2)(b). He stated that Ms. § 87(2)(b) was not resisting in any way.

PO Sanchez does not recall seeing PO Brown or any other officers search through Ms. § 87(2)(b) purse.

PO Sanchez never heard any officers refer to Ms. § 87(2)(b) as "hot" or "sexy" over the radio or in person. He said that he did not make these remarks either.

According to PO Luparello, at approximately 3:40 PM, Sgt. Calderin radioed a description of a female seen purchasing narcotics to the arrest team. PO Luparello remembers that it was of a female with long dark hair, dark

jeans, and a large, black pocketbook, who was walking northbound on Broadway with a friend. At West 140th Street and Broadway, PO Luparello and PO Kane observed Ms. § 87(2)(b) walking down the street with her friend. They immediately noticed that Ms. § 87(2)(b) fit the description of the subject. PO Luparello approached Ms. § 87(2)(b) and her friend and told them that he had to ask them some questions. PO Luparello brought Ms. § 87(2)(b) and her friend over to the side of the road, by his and PO Kane's RMP. Ms. § 87(2)(b) was very calm, but her friend started yelling, cursing and crying. PO Luparello explained to Ms. § 87(2)(b) that she fit the description of a female seen purchasing narcotics. PO Luparello asked Ms. § 87(2)(b) to unzip her jacket and he checked around her waist to make sure she did not have a concealed weapon. Then PO Brown pulled up in an RMP and asked if there was anything she could do. PO Luparello asked PO Brown if she could conduct Ms. § 87(2)(b) frisk. PO Brown exited her RMP and approached Ms. § 87(2)(b). At that point, PO Luparello asked Ms. § 87(2)(b) for some identification, which she provided and he and PO Kane got into their RMP to do a background check on Ms. § 87(2)(b). The background check showed that someone with the same name as Ms. § 87(2)(b) and from the same area in Long Island had a warrant on her record § 87(2)(b). PO Luparello was in the RMP when PO Brown was frisking Ms. § 87(2)(b) and his back was to them, so he did not see the frisk take place. He is certain that PO Brown frisked Ms. § 87(2)(b) because he asked her to and then once the frisk was concluded, she told him that she did not find anything on Ms. § 87(2)(b). Once it was determined that Ms. § 87(2)(b) did not have any drugs on her, PO Luparello radioed this and the information regarding the § 87(2)(b) warrant to Sgt. Calderin. Sgt. Calderin instructed PO Luparello to place Ms. § 87(2)(b) in the prisoner van so he could make a confirmatory identification when the SNEU operation was concluded. Ms. § 87(2)(b) was placed in the prisoner van. At the end of the operation, Sgt. Calderin determined that Ms. § 87(2)(b) was not the subject and that she was free to go. Ms. § 87(2)(b) was taken to the precinct where her mother was waiting for her. PO Luparello and Sgt. Calderin explained to the mother what had happened. PO Luparello did a void of arrest, which is indicated on Ms. § 87(2)(b) arrest report, and she left.

As noted above, PO Luparello claims to have been in the RMP with his back turned until after Ms. § 87(2)(b) was frisked, so he did not see anything that took place. He does not know if PO Brown searched inside Ms. § 87(2)(b) clothing or not and as far as he knows Ms. § 87(2)(b) shoes remained on and her shirt remained buttoned. PO Luparello does not know if PO Brown frisked Ms. § 87(2)(b) friend or not, but he doesn't think so, because the friend was not identified as a possible subject. PO Luparello stated that PO Kane did not frisk Ms. § 87(2)(b) at any time. As far as Ms. § 87(2)(b) purse was concerned, PO Luparello stated that he and PO Kane removed it from Ms. § 87(2)(b) and placed it on the hood of the RMP and the only time he looked in it was when Ms. § 87(2)(b) got her wallet out of the bag and he looked over her shoulder into the bag, but neither he nor PO Kane ever searched through it. PO Luparello does not know if PO Brown looked through Ms. § 87(2)(b) purse or not.

PO Luparello never heard PO Brown say to Ms. § 87(2)(b) "None of your fucking business," or tell her to "shut the fuck up." Nor did he hear PO Brown make any comments whatsoever about Ms. § 87(2)(b) jeans. PO Luparello never heard PO Brown ask Ms. § 87(2)(b) if she had a yeast infection or mention a yeast infection at any time.

PO Luparello never saw PO Brown grab Ms. § 87(2)(b) by the wrist and jerk her around. PO Luparello further stated that if any of these allegations allegedly occurred when PO Brown was frisking Ms. § 87(2)(b) then he would not know anything about them, because he did not witness the frisk.

PO Luparello did not see PO Brown act aggressively at all towards Ms. § 87(2)(b). More specifically, he did not see her grab hold of Ms. § 87(2)(b) wrist and jerk her around at any time.

PO Luparello does not recall a male getting arrested at around the same time in the same vicinity as Ms. § 87(2)(b). PO Luparello does not recall PO Brown being involved in any other arrest that day. PO Luparello did not see PO Brown slap a male in the head.

PO Luparello never heard any officers refer to Ms. § 87(2)(b) as "hot" or "sexy" or say, "It's funny that someone so

sexy could be selling drugs.” PO Luparello stated that neither he nor his partner, PO Kane, said any such thing, either.

§ 87(2)(g)

PO Kane admitted to seeing PO Brown frisk Ms. § 87(2)(b). He explained that even though he and PO Luparello were in the RMP checking Ms. § 87(2)(b) and Ms. § 87(2)(b) identification on the computer, he continually turned around in order to keep PO Brown, Ms. § 87(2)(b) and her friend in view, for safety reasons. PO Kane does not think Ms. § 87(2)(b) friend was frisked. PO Kane did not see PO Brown search inside Ms. § 87(2)(b) pockets or any of her clothing. PO Kane did not see PO Brown look through Ms. § 87(2)(b) purse, go through Ms. § 87(2)(b) pockets, lift up her pants legs or check Ms. § 87(2)(b) socks. PO Kane never heard PO Brown tell Ms. § 87(2)(b) to take her boots off and he never saw Ms. § 87(2)(b) without her shoes on. PO Kane never heard PO Brown tell Ms. § 87(2)(b) to unbutton the top few buttons on her shirt and he never saw Ms. § 87(2)(b) with her shirt unbuttoned. PO Kane stated that neither he nor PO Luparello ever searched or frisked Ms. § 87(2)(b) or her friend in any way. § 87(2)(g)

According to PO Brown, she Sgt. McCormack and PO Sanchez were driving down Broadway. At West 140th Street and Broadway, PO Luparello and PO Kane waved at them to stop. When they did, PO Luparello told Sgt. McCormack that they needed PO Brown to pat down two females they stopped. Sgt. McCormack and PO Brown exited the RMP and he instructed her to frisk the two females, which she did. PO Brown stated that when she frisked Ms. § 87(2)(b) she felt something in her pockets, so she then searched inside them. PO Brown frisked Ms. § 87(2)(b) and she attempted to reach inside her pockets, but she couldn't because Ms. § 87(2)(b) jeans were too tight. PO Brown stated that both females were very upset. Ms. § 87(2)(b) was crying and Ms. § 87(2)(b) kept asking her, “Why are you stopping me? Why are you stopping me?” PO Brown didn't know what was going on, since it wasn't her collar, so she said to Ms. § 87(2)(b) “Listen, hon, I don't know. It's not my arrest.” PO Brown lifted up Ms. § 87(2)(b) pants legs to check inside the top of her socks. Ms. § 87(2)(b) said in a very annoyed manner, “What do you want me to do? Take off my boots?” and then she took off one of her boots and handed it to PO Brown. Then Ms. § 87(2)(b) took off her other boot and handed that one to PO Brown. PO Brown shook both boots out and then gave them back to Ms. § 87(2)(b). PO Brown noted that Ms. § 87(2)(b) took her boots off on her own and that she never told her to. PO Brown said that neither she, nor any other officer, had Ms. § 87(2)(b) unbutton the top buttons of her shirt and Ms. § 87(2)(b) bra was not checked at any time. PO Brown stated that that type of search is never done on the street, it is only done inside the precinct. While PO Brown was frisking Ms. § 87(2)(b) Ms. § 87(2)(b) kept turning around and flinging her arms around, in an attempt to get PO Luparello's and PO Kane's attention to ask them what was going on. Ms. § 87(2)(b) is considerably taller than PO Brown, so PO Brown felt this was a safety issue. She said to Ms. § 87(2)(b) “Please, you have to keep both of your hands on the vehicle,” but Ms. § 87(2)(b) continued to flail around. PO Brown took hold of one of Ms. § 87(2)(b) wrists and physically put her hand down against the car, while instructing her again to keep both hands against the car. PO Brown said that it was difficult for her to get Ms. § 87(2)(b) hand on the vehicle, because of the considerable height difference, but she denied being forceful or jerking Ms. § 87(2)(b) arm when she did this. PO Brown did not think Ms. § 87(2)(b) was ever trying to get away. She just felt more secure if Ms. § 87(2)(b) hands were on the vehicle where she could see them at all times.

PO Brown strongly denied telling Ms. § 87(2)(b) to “Shut the fuck up,” and “It's none of your fucking business.” PO Brown was really surprised by these allegations, because she said she doesn't curse.

PO Brown said that she never made fun of Ms. § 87(2)(b) jeans being too tight. She explained that PO Luparello asked her if she found anything in Ms. § 87(2)(b) pockets and she simply explained to him that she was unable to check inside the pockets, because her jeans were too tight. PO Brown did not say this as an insult to Ms. § 87(2)(b). Furthermore, PO Brown was taken aback when asked if she asked Ms. § 87(2)(b) if she had a yeast infection or if she told Ms. § 87(2)(b) that she must have a yeast infection because her jeans were so tight. She strongly denied this allegation.

As PO Brown was leaving this particular incident and heading across the street, she believes that Ms. § 87(2)(b) was being led to the prisoner van by PO Luparello.

PO Brown never heard any male officers refer to Ms. § 87(2)(b) as hot or sexy or more, specifically, she never heard any male officers say, "It's funny someone so hot could be selling drugs." PO Brown never heard anything like this over the radio either.

An incident started across the street and a man was screaming and yelling about something. PO Brown, Sgt. McCormack and PO Sanchez went across the street and she arrested this male, identified as § 87(2)(b) for § 87(2)(b). PO Brown said that when she went to handcuff Mr. § 87(2)(b) he resisted, so a struggle ensued. PO Brown, Sgt. McCormack and PO Sanchez grabbed hold of Mr. § 87(2)(b) arms and had to use a certain amount of force to get them behind his back and cuffed. However, PO Brown strongly denied hitting this man on the side of the head or anywhere else. She said that neither Sgt. McCormack nor PO Sanchez hit him either.

PO Brown stated that Mr. § 87(2)(b) was arrested and placed in her RMP and that this was a completely separate incident than Ms. § 87(2)(b) arrest.

A contact letter was sent to Mr. § 87(2)(b) at the address listed in the command log, but it was returned and stamped Address Unknown. Mr. § 87(2)(b) is not listed in the Cole's Directory and there is no record of a § 87(2)(b) with the same address in the phonebook or a § 87(2)(b) with the same address or date of birth found in DMV.

A radio run was requested, but because this was a narcotics operation, the radio communication was from officer to officer and the results were negative.

Conclusions and Recommendations

Allegation A. Abuse of Authority- PO Luparello abused his authority when he stopped and questioned Ms. § 87(2)(b) in violation of Patrol Guide procedure 116-33.

PO Luparello was part of an arrest team involved in a Street Narcotics Enforcement Operation. He and his partner received a description over the radio from Sgt. Calderin of a female observed purchasing drugs. § 87(2)(g) this radio communication was point to point and therefore did not show up on a radio run. § 87(2)(g)

According to New York Search and Seizure Laws, "A police officer may have probable cause to arrest a defendant based upon the description of the perpetrator and the defendant's similarity to that description...a description of the perpetrator's clothes which matches identically with the defendant's clothes can constitute probable cause." (Kamins, New York Search and Seizure, pp. 72-73)(Enclosure 1a-1b) New York Search and Seizure Law further states that this still holds even if the description is not perfect. § 87(2)(g)

It is recommended that allegation A be Exonerated.

Allegation B. Abuse of Authority- PO Luparello abused his authority when he stopped and searched Ms. § 87(2)(b) in violation of Patrol Guide procedure 116-33.

Ms. § 87(2)(b) version of what happened makes it look as though she was the subject in this incident. She claims that she was the one immediately placed against the RMP and frisked by PO Luparello and that she is the one who he had unzip her jacket. § 87(2)(g) PO Luparello stated that he asked Ms. § 87(2)(b) to unzip her jacket and he frisked her waistband area, but he had no reason to frisk Ms. § 87(2)(b). She was not the one who fit the description. She was not suspected of any crime. The only reason she was stopped to begin with, was because she was walking along with Ms. § 87(2)(b) who had to be stopped and arrested. According to PO Luparello and PO Kane, they did not search or frisk Ms. § 87(2)(b) at any time and they had no reason to. They said that she stood off to the side and cried and yelled at them and PO Brown while Ms. § 87(2)(b) was being investigated. Ms. § 87(2)(b) also said that she did not see Ms. § 87(2)(b) get frisked or searched at any time. Ms. § 87(2)(b) stated that Ms. § 87(2)(b) sat on the hood of a car parked next to the RMP, where she cried and screamed at the officers, while she was being searched by PO Brown. § 87(2)(g)

It is recommended that this allegation be Unfounded.

Allegations C and D. Abuse of Authority- PO Luparello and PO Kane abused their authority when they searched Ms. § 87(2)(b) purse, in violation of Patrol Guide procedure 116-33.

According to Ms. § 87(2)(b) PO Luparello and PO Kane searched through her purse, but they both denied this. PO Kane stated that he took her purse away from her and put it on the hood of the car for safety reasons. However, PO Luparello stated that he looked over Ms. § 87(2)(b) shoulder and into her bag as she was getting her identification out. § 87(2)(g)

It is therefore recommended that allegations C and D be Exonerated.

Allegation E. Abuse of Authority- PO Brown abused her authority when she searched Ms. § 87(2)(b) in violation of Patrol Guide procedure 116-33.

According to Ms. § 87(2)(b) PO Brown came onto the scene and searched her. PO Brown admitted to this. Sgt. McCormack, PO Sanchez and PO Kane all stated that she only patted Ms. § 87(2)(b) down and did not search inside her pockets. PO Luparello claims that he did not see PO Brown frisk Ms. § 87(2)(b) because he was in the RMP, but he assumes that she did, because he asked her to. The other officers were not present until after this search was conducted. PO Brown stated that she tried to search inside Ms. § 87(2)(b) pockets, but she couldn't because her pants were too tight. She did admit to searching Ms. § 87(2)(b) socks and shaking out her boots, since Ms. § 87(2)(b) took them off voluntarily. § 87(2)(g)

It is therefore recommended that allegation E be Exonerated.

Allegation F. Abuse of Authority- Sgt. McCormack abused his authority when he instructed PO Brown to search Ms. § 87(2)(b) in violation of Patrol Guide procedure 116-33.

According to Ms. § 87(2)(b) PO Brown searched her back pockets and her jacket pockets. PO Brown admitted to this. She explained that after speaking to PO Luparello and PO Kane, Sgt. McCormack instructed her to frisk Ms. § 87(2)(b) and Ms. § 87(2)(b). PO Brown stated that when she frisked Ms. § 87(2)(b) she felt an object in her pockets, so she then searched inside her pants pockets. PO Brown could not recall what the object was. Sgt. McCormack, PO

Kane and PO Sanchez claim that PO Brown only frisked Ms. § 87(2)(b) and not Ms. § 87(2)(b). PO Luparello claims not to have seen PO Brown frisk anyone, but he did not think she would have frisked Ms. § 87(2)(b) because he said there was no need to. She wasn't suspected of a crime. In addition, Ms. § 87(2)(b) did not see PO Brown search Ms. § 87(2)(b) and this would have happened right next to her. § 87(2)(g) Ms. § 87(2)(b) and PO Brown, herself, say that PO Brown searched her pockets. However, the other officers and Ms. § 87(2)(b) friend, Ms. § 87(2)(b) didn't see this happen. § 87(2)(g)

It is recommended that allegation F be Unsubstantiated.

Allegations G and H. Discourtesy- PO Brown was discourteous towards Ms. § 87(2)(b) when she asked her if she had a yeast infection due to her jeans being so tight and when she said, "Shut the fuck up," and "None of your fucking business," in violation of Patrol Guide procedure 104-01, page 3.

According to Ms. § 87(2)(b) when PO Brown was searching her, she was very discourteous and rude towards her. Ms. § 87(2)(b) said that she wanted to know why she was being stopped and searched, so she asked PO Brown what was going on. According to Ms. § 87(2)(b) instead of answering her, PO Brown told her to shut the fuck up and that it was none of her fucking business. Furthermore, Ms. § 87(2)(b) claims that PO Brown commented on how tight her jeans were and then asked her if she had a yeast infection because her jeans were so tight. § 87(2)(g)

PO Brown strongly denied these allegations. The other officers involved in this incident said they never heard PO Brown curse at or use any profanity towards Ms. § 87(2)(b). They also denied hearing PO Brown make any rude remarks about Ms. § 87(2)(b) jeans being too tight and asking her if she had a yeast infection. Sgt. McCormack and PO Brown, herself, admit that she told PO Luparello that she couldn't check Ms. § 87(2)(b) pants pockets for contraband, because her jeans were too tight. However, they both emphasized that PO Brown was just stating fact and explaining why she did not search Ms. § 87(2)(b) jeans, and that she was not being rude or offensive. More importantly, Ms. § 87(2)(b) did not hear PO Brown curse at Ms. § 87(2)(b) or ask her if she had a yeast infection. Ms. § 87(2)(b) claims that she couldn't hear what PO Brown was yelling at Ms. § 87(2)(b) outside of the van. Ms. § 87(2)(b) also claims that Ms. § 87(2)(b) told her that PO Brown was really rude towards her and made some rude remarks towards her on the van. Ms. § 87(2)(b) believes that Ms. § 87(2)(b) said that that was when PO Brown made the remarks about her jeans being too tight. § 87(2)(g)

According to Ms. § 87(2)(b) PO Brown cursed at her and asked her if she had a yeast infection, while she was searching her, which took place right in front of Ms. § 87(2)(b) who was sitting on the hood of the car parked right next to the RMP that Ms. § 87(2)(b) was being searched against. None of the officers involved in this incident heard PO Brown curse at Ms. § 87(2)(b) or use rude language regarding the fit of her jeans. § 87(2)(g) Ms. § 87(2)(b) who was in close proximity to where her friend, Ms. § 87(2)(b) was being searched by PO Brown, did not hear any of these remarks. § 87(2)(g)

It is recommended that allegations G and H be Unfounded.

Allegation I. Force- PO Brown employed unnecessary force when she grabbed Ms. § 87(2)(b) by the wrist and jerked her around, in violation of Patrol Guide procedure 104-01, page 11.

Ms. § 87(2)(b) claims that while PO Brown was searching her, she was very aggressive and repeatedly grabbed her by the wrist and jerked her around. PO Brown admitted to grabbing hold of one of Ms. § 87(2)(b) wrists and physically putting her hand against the RMP. PO Brown explained that she did this because Ms. § 87(2)(b) who kept turning around and flailing her arms in an attempt to get PO Luparello's and PO Kane's attention, was making her nervous and she already asked her once keep her hands against the car. PO Brown said that she didn't think Ms. § 87(2)(b) was attempting to get away or hurt her, but because Ms. § 87(2)(b) who is 5'7" and 130 lbs., is so much bigger than PO

Brown, who is only 4'11" and 110 lbs., she felt it was important for Ms. § 87(2)(b) to keep both her hands on the RMP where she could see them, so there wouldn't be any safety issues. § 87(2)(g)

However, none of the officers admitted to seeing this, so they could not confirm PO Brown's intentions. They all denied seeing PO Brown grab Ms. § 87(2)(b) by the wrist, even though she did. They also never mentioned Ms. § 87(2)(b) was flailing her arms, even when asked if she resisted at any time or seemed upset. In fact, PO Luparello and PO Kane indicated that Ms. § 87(2)(b) remained quite calm throughout the entire incident. § 87(2)(g)

§ 87(2)(b) The only two people who said this happened are PO Brown and Ms. § 87(2)(b). However, one says that it was excessive and unnecessary force and the other states that it was not threatening or forceful, but instead done to ensure her own safety. Furthermore, PO Brown denies actually jerking Ms. § 87(2)(b) around. Therefore, the fact that PO Brown grabbed hold of Ms. § 87(2)(b) wrist is not being disputed, § 87(2)(g). It is recommended that allegation I be Unsubstantiated.

Allegations J and K. Offensive Language- Two unidentified Members of Service used offensive language when they called Ms. § 87(2)(b) "hot" and "sexy" and said, "It's funny that someone so hot could be selling drugs," in violation of Patrol Guide procedure 104-01, page 3.

According to Ms. § 87(2)(b) when she was placed inside the prisoner van at West 140th Street and Broadway, she heard male officers call her "hot" and "sexy" over the radio. She also alleges that a car pulled up alongside the van she was in and the two male officers outside said to the officers inside the van, "It's funny that someone so hot could be selling drugs." Ms. § 87(2)(b) was unable to see the officers who said this, because she was in the back of the van. PO Baird and PO Coleman, who were assigned to the prisoner van Ms. § 87(2)(b) was placed in, strongly denied ever hearing any such comments from any officers over the radio or in person. The other officers involved in this case also strongly denied hearing such remarks over the radio and in person. All of the officers denied saying these things themselves. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that allegations I and J be found Members of Service Unidentified.

Allegation L. Force- PO Brown employed excessive force when she hit Mr. § 87(2)(b) on the side of his head when she was arresting him across the street from where Ms. § 87(2)(b) was arrested, in violation of Patrol Guide procedure 104-01, page 11.

According to Ms. § 87(2)(b) after Ms. § 87(2)(b) was placed inside the prisoner van, PO Brown went across the street and arrested a male, later identified as § 87(2)(b). Ms. § 87(2)(b) claims that PO Brown slapped Mr. § 87(2)(b) on the side of his head when she was arresting him, before placing him inside the prisoner van with Ms. § 87(2)(b). PO Brown, Sgt. McCormack, PO Sanchez, all of whom were involved in Mr. § 87(2)(b) arrest, strongly denied this allegation. The other officers involved in Ms. § 87(2)(b) arrest said that they never saw this happen, either. § 87(2)(g)

§ 87(2)(b) Sgt. McCormack stated that Mr. § 87(2)(b) was arrested because he either pushed or hit PO Brown. PO Brown stated that force was then needed to effect Mr. § 87(2)(b) arrest. § 87(2)(g)

§ 87(2)(g)

He was actually placed inside the RMP that PO Brown, Sgt. McCormack and PO Sanchez were assigned to and immediately taken back to the precinct, where he was issued a summons § 87(2)(b) and released. § 87(2)(g) Ms. § 87(2)(b) was the only person, other than PO Brown and her partners, who admitted to seeing this arrest take place. § 87(2)(g)

Attempts to contact Mr. § 87(2)(b) were made, but they were unsuccessful. He is therefore unavailable to give his version of what happened. § 87(2)(g) it is recommended that allegation K be Unsubstantiated.

Investigator: Elizabeth Tavano Date: 9/10/99
Supervisor: _____ Date: _____
Reviewed by: [Signature] Date: 9/13/99
Reviewed by: Richard A. Orr Date: 9.15.99